

City of Indianapolis, et al Petitioners v. James Edmond et al.

121 S. CT. 447

SUPREME COURT

NOVEMBER 28, 2000

By Medha Khanal

Parties
Involved:

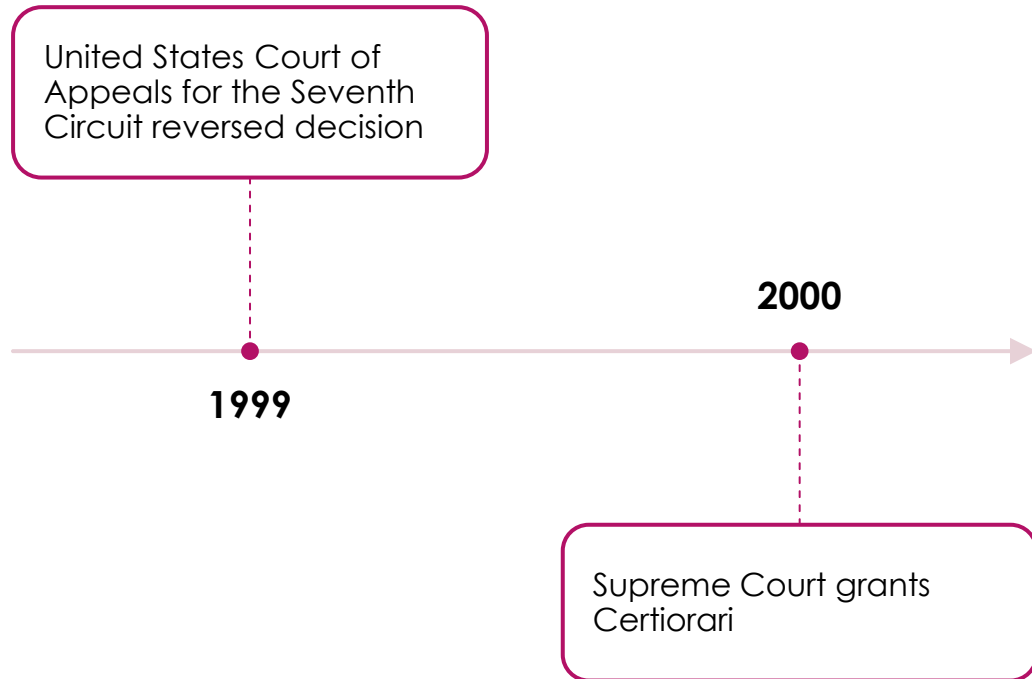
Appellant: James Edmond

Respondent: City of
Indianapolis

Facts

- ▶ 1998: Indianapolis PD sets up roadblocks for drug trafficking checks throughout city
- ▶ James Edmond and Joell Palmer file class action lawsuit against City
 - ▶ -Neither were arrested at the roadblocks
- ▶ United States District Court for the Southern District of Indiana denies motion for Preliminary Injunction
 - ▶ -Edmond appeals

Facts



**Certiorari: a writ or order by which a higher court reviews a decision of a lower court.*

Edmond's Argument

Roadblocks violated the fourth amendment

Search and Seizure considered unreasonable when absence of individualized suspicion/wrongdoing

Therefore, police department's general crime control procedures are unreasonable

**fourth amendment: The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated, and no Warrants shall issue, but upon probable cause, supported by Oath or affirmation, and particularly describing the place to be searched, and the persons or things to be seized.*

Respondent Argument

- ▶ Supreme court used balancing test in upholding other roadway checkpoints where gov interest was investigating crime
- ▶ City checkpoint serve as sobriety and driving regulation checking interest that court has approved

**United States v. Martinez-Fuerte, Michigan Dept. of State Police v. Sitz, Delaware v. Prouse were all cases used to exemplify that the court had previously voted in favor of police powers. These were cases dealing with seizures at checkpoints for various reasons and the court had found that they did not violate the 4th amendment*

Issue

Are the roadblocks a violation of reasonable seizure and should they be deemed as a violation of the Fourth Amendment?

Decision

THE ROADBLOCKS WERE A
VIOLATION OF THE FOURTH
AMENDMENT

Reasoning and Rationale

Court declined the allowance of the roadblock because under the intent of the roadblocks being the stoppage of general crime, allowing it would remove the requirement of individualized suspicion in detaining people

While the court had previously ruled in favor of checkpoints in other cases, they had never approved of a checkpoint that was for general crime which is why they deemed that the comparison between this case and the others was not suitable

Lessons Learned



Roadblocks set up for the sole purpose of general crime considered a violation against the 4th amendment



Sobriety checkpoints still considered reasonable under fourth amendment



DUI roadblocks also deemed reasonable under the amendment

*Both bear close connection to roadway safety

Footstomp

In case of emergency, police have power to set up roadblocks

- Ex: terrorist attack, catching criminal

Does not prevent law enforcement from making arrests at lawful roadblocks that are unrelated to roadblock's intended purpose

- Ex: officer smelling marijuana at a roadblock for license + registration checking